

SENATE No. 1460

The Commonwealth of Massachusetts

PRESENTED BY:

Mark C. Montigny

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to improving enforcement for tethering violations.

PETITION OF:

NAME:

Mark C. Montigny

DISTRICT/ADDRESS:

Second Bristol and Plymouth

SENATE No. 1460

By Mr. Montigny, a petition (accompanied by bill, Senate, No. 1460) of Mark C. Montigny for legislation to improve enforcement for tethering violations. Municipalities and Regional Government.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1056 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to improving enforcement for tethering violations.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 174E of chapter 140 of the General Laws, as appearing in the 2020
2 Official Edition is hereby amended by striking in paragraph (a) the first and second sentences
3 and replace with:-

4 (a) No person owning or keeping a dog shall chain, confine, or tether a dog outside and
5 unattended (1) for longer than 5 hours or (2) outside from 10:00 p.m. to 6:00 a.m.

6 “Outside and unattended,” for the purposes of this section, shall mean any dog who is
7 exposed to the elements for a duration of longer than 15 minutes and not in visual range and
8 physical presence of the owner. This expressly includes, but is not limited to, a dog in a securely

fenced-in yard, a dog in a kennel, or a dog tethered. For purposes of this section a dog shall be considered “outside” regardless of access to an outdoor doghouse or similar structure.

No person owning or keeping a dog shall tether, confine or chain a dog in a manner that allows the dog to leave the owner's, guardian's or keeper's property.

SECTION 2. Section 174E of chapter 140 is hereby further amended by inserting after the word “chains”, in line 7, the following words:- , pinch collars, choke collars,

SECTION 3. Section 174E of chapter 140 is hereby further amended by striking out, in line 7, the words “lines or”

SECTION 4. Section 174E of chapter 140 is hereby further amended by inserting after the word “feet”, in line 19, the following words:- per dog

SECTION 5. Section 174E of chapter 140 is hereby further amended by striking out, in lines 35-37, the words “provided, however, that a choke collar and a pinch collar shall not be used to tether a dog to a cable run;”

SECTION 6. Section 174E of chapter 140 is hereby further amended by striking out the words “in accordance with subsection (b)”, in lines 52-53, and inserting in place thereof the following words:- and unattended

SECTION 7. Section 174E of chapter 140 is hereby further amended by striking out in paragraph (c) the third sentence and inserting in place thereof the following sentence:- The entrance to the shelter shall allow the dog's entry and exit, and in adverse weather have a flap or other mechanism sturdy enough to block entry of weather elements.

29 SECTION 8. Section 174E of chapter 140 is hereby further amended by inserting after
30 the word “outside”, in line 64, the following words:- and unattended

31 SECTION 9. Section 174E of chapter 140 is hereby further amended by striking out, in
32 lines 69-70, the words “, unless the tethering is for not more than 15 minutes”

33 SECTION 10. Section 174E of chapter 140 is hereby further amended by striking out, in
34 line 90, the word “and” and inserting in place thereof the following word:- or.